

IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, OHIO
DIVISION OF DOMESTIC RELATIONS AND JUVENILE BRANCH

LAMONT EVANS,

PLAINTIFF,

v.

TALICIA TOWNSEND,

DEFENDANT.

CASE NO. 12JU-07-9451

JUDGE PREISSE

MAGISTRATE KRIPPEL

JUDGMENT ENTRY

TERMINATION
SUP. CT. CODE

Pursuant to Ohio Rules of Civil Procedure / Ohio Rules of Juvenile Procedure, the Court has by specific and/or general order of reference directed that this cause be referred to a magistrate, which magistrate has the powers specified in said Ohio Civil Rules / Ohio Juvenile Rules.

This matter came before the Court for hearing on June 4 and 5, 2013 upon complaint, filed July 16, 2012, and motions filed December 3, 2012 and June 4, 2013. Plaintiff, Lamont Evans, appeared with counsel, Beverly Corner. Defendant, Talicia Townsend, appeared with counsel, Yvette C. Davis.

The magistrate has filed a decision in this matter with the Clerk of Courts on see time stamp and copies thereof were mailed to the parties and/or their attorneys of record. The Court adopts the magistrate's decision and approves same, unless specifically modified or vacated, and enters the same as a matter of record, and includes same as the Court's judgment herein. The Court further finds there is no error of law or other defect on the face of the magistrate's decision. The Court incorporates by reference the attached magistrate's decision and makes same the judgment of this Court.

(Check if applicable)

Pursuant to Ohio Rule of Civil Procedure 53(D)(4)(e)(ii) / Juvenile Procedure 40(D)(4)(e)(ii) the Court finds immediate relief is justified. Should a party file timely objections to the magistrate's decision, this order shall serve as an interim order, and shall not be subject to the automatic stay caused by the filing of said objections. Said interim order shall not extend more than 28 days from the date of entry, subject to extension by the court in increments of 28 days for good cause shown.

Dana Preisse
JUDGE PREISSE

PRAECIPE: TO THE CLERK OF COURTS

Pursuant to Civil Rule 58(B), you are hereby instructed to serve upon all parties not in default for failure to appear, notice of the judgment and its date of entry upon the journal.

FRANKLIN COUNTY CLERK OF COURTS

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MAGISTRATE'S DECISION

This matter came before the Magistrate for hearing on June 4 and 5, 2013 upon Plaintiff's complaint for allocation of parental rights, filed July 16, 2012 and motion to approve, adopt, modify and terminate an administrative child support order, filed December 3, 2012. Defendant filed a motion to compel June 4, 2013. All parties were properly served and appeared with counsel. The Court has jurisdiction over the children, the parties and the subject matter of the complaint.

Findings of Fact and Conclusions of Law pursuant to Juvenile Rule 40(D)(3) were not requested. A record of the proceedings was made.

The Magistrate heard the testimony of Plaintiff and Defendant. Admitted into evidence was Plaintiff's Exhibits 1 through 7. The father-child relationship was established through the Franklin County Child Support Agency for all three children. An administrative child support order is in effect.

Although requested, no shared parenting plan was filed. Since there is no plan to approve, the Magistrate must deny Plaintiff's request for shared parenting. Pursuant to R.C. 3109.04, the Magistrate finds that it is in the children's best interest to designate Defendant, Talicia Townsend, as custodian of the minor children, Imonee Evans, born

October 24, 2003, Isaiah Evans, born February 17, 2006 and Ivan Evans, born July 3, 2007. (Please note no one testified about the children's birth dates and Plaintiff's affidavit lists a different birth date for Ivan than what is set forth in the administrative child support order. The birth date from the support order has been used by the Magistrate.)

Pursuant to O.R.C. 3109.051, the Magistrate finds it in the children's best interest to establish a parenting time schedule for Plaintiff.

Finally, as to financials, Plaintiff requests that his administrative child support order be approved and adopted as a judicial order and then modify or terminate the order.

 Neither party provided any evidence regarding incomes, availability of health insurance and the cost of any private health insurance coverage. There was some limited testimony regarding day care expenses. No one provided a worksheet as required by local rule. The Magistrate cannot prepare a worksheet based upon the evidence presented therefore the administrative order shall be made a judicial order and shall remain in effect as is.

Defendant's motion to compel is moot.

Having considered the evidence and appropriate law, it is the decision of the Magistrate that the Court enter the following orders:

1. Defendant, Talicia Townsend, is designated the residential parent and sole legal custodian of the parties' three minor children, Imonee Evans, born October 24, 2003, Isaiah Evans, born February 17, 2006 and Ivan Evans, born July 3, 2007;
2. Plaintiff shall exercise parenting time on alternating Saturdays from 7:00 P.M. until Thursday at 8:00 A.M. Plaintiff shall take the children to school or deliver them to daycare, whichever is appropriate;
3. The Administrative Child Support Order Number: 09AO7043360606, a copy of which was filed in this matter on December 3, 2012, is hereby adopted by the Court and made a judicial order;

4. Defendant's motion filed June 4, 2013 is dismissed;

5. The following notices shall apply:

I. **RELOCATION NOTICE**: Pursuant to Ohio Revised Code Section 3109.051(G), the parties hereto are hereby notified as follows:

IF THE RESIDENTIAL PARENT INTENDS TO MOVE TO A RESIDENCE OTHER THAN THE RESIDENCE SPECIFIED IN THE PARENTING TIME ORDER OR DECREE OF THE COURT, THE RESIDENTIAL PARENT SHALL FILE A NOTICE OF INTENT TO RELOCATE WITH THIS COURT, ADDRESSED TO THE ATTENTION OF THE RELOCATION OFFICER. UNLESS OTHERWISE ORDERED PURSUANT TO O.R.C. SECTIONS 3109.051(G)(2), (3), AND (4), A COPY OF SUCH NOTICE SHALL BE MAILED BY THE COURT TO THE PARENT WHO IS NOT THE RESIDENTIAL PARENT. UPON RECEIPT OF THE NOTICE, THE COURT, ON ITS OWN MOTION OR THE MOTION OF EITHER PARTY, MAY SCHEDULE A HEARING WITH NOTICE TO BOTH PARTIES TO DETERMINE WHETHER IT IS IN THE BEST INTEREST OF THE CHILD TO REVISE THE PARENTING TIME SCHEDULE.

II. **RECORDS ACCESS NOTICE**: Pursuant to Ohio Revised Code Sections 3109.051(H) and 3319.321(B)(5)(a) the parties hereto are hereby notified as follows:

EXCEPTING AS SPECIFICALLY MODIFIED OR OTHERWISE LIMITED BY COURT ORDER, AND SUBJECT TO O.R.C. SECTIONS 3125.16 AND 3319.321(F), THE PARENT WHO IS NOT THE RESIDENTIAL PARENT, IS ENTITLED TO ACCESS TO ANY RECORD THAT IS RELATED TO THE CHILD, UNDER THE SAME TERMS AND CONDITIONS AS THE RESIDENTIAL PARENT, AND TO WHICH SAID RESIDENTIAL PARENT IS LEGALLY PROVIDED ACCESS. ANY KEEPER OF A RECORD WHO KNOWINGLY FAILS TO COMPLY WITH THIS ORDER IS IN CONTEMPT OF COURT.

III. **DAY CARE CENTER ACCESS NOTICE**: Pursuant to Ohio Revised Code Sections 3109.051(I), the parties hereto are hereby notified as follows:

EXCEPTING AS SPECIFICALLY MODIFIED OR OTHERWISE LIMITED BY COURT ORDER, AND IN ACCORDANCE WITH O.R.C. SECTION 5104.011, THE PARENT WHO IS NOT THE RESIDENTIAL PARENT, IS ENTITLED TO ACCESS TO ANY DAY CARE CENTER THAT IS OR WILL BE ATTENDED BY THE CHILD WITH WHOM PARENTING TIME IS GRANTED, TO THE SAME EXTENT THAT THE RESIDENTIAL PARENT, IS GRANTED ACCESS TO THE CENTER.

IV. **SCHOOL ACTIVITIES NOTICE**: Pursuant to Ohio Revised Code Section 3109.051(J), the parties hereto are hereby notified as follows:

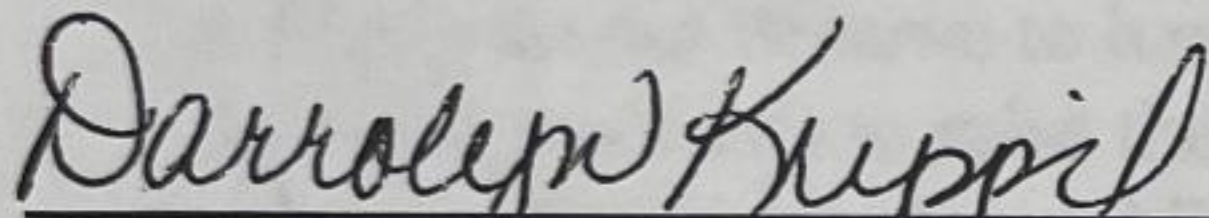
EXCEPTING AS SPECIFICALLY MODIFIED OR OTHERWISE LIMITED BY COURT ORDER, AND SUBJECT TO O.R.C. SECTION 3319.321(F), THE PARENT WHO IS NOT THE RESIDENTIAL PARENT, IS ENTITLED TO ACCESS, UNDER THE SAME TERMS AND CONDITIONS AS THE RESIDENTIAL PARENT, TO ANY STUDENT ACTIVITY THAT IS RELATED TO THE CHILD AND TO WHICH THE RESIDENTIAL PARENT OF THE CHILD LEGALLY IS PROVIDED ACCESS. ANY SCHOOL EMPLOYEE OR OFFICIAL WHO KNOWINGLY FAILS TO COMPLY WITH THIS ORDER IS IN CONTEMPT OF COURT.

6. Unless stated otherwise, this decision is effective upon approval by the Court;

7. Costs to Plaintiff.

NOTICE TO THE PARTIES:

A party shall not assign as error on appeal the court's adoption of any factual finding or legal conclusion, whether or not specifically designated as a finding of fact or conclusion of law under Civ. R. 53(D)(3)(a)(ii) or Juv. R. 40(D)(3)(a)(ii), unless the party timely and specifically objects to that factual finding or legal conclusion as required by Civ. R. 53(D)(3)(b) or Juv. R. 40(D)(3)(b).


MAGISTRATE KRIPPEL

6-21-13
DATE

cc: Beverly Corner, #0042725
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